

STATE OF NEW YORK

5787--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 20, 2025

Introduced by M. of A. RAJKUMAR, LEVENBERG -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the uniform justice court act, the town law and the village law, in relation to requiring certain town and village justices be admitted to practice law in the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 105 of the uniform justice court act is amended by
2 adding a new subdivision (a-1) to read as follows:

3 (a-1) Education. Notwithstanding any other provision of law to the
4 contrary, no person may serve as a town or village justice in a town or
5 village with a high arraignment volume unless they are an attorney
6 admitted to practice law in this state for at least five years as of the
7 date they commence the duties of office. For the purposes of this subdi-
8 vision, "town or village with a high arraignment volume" shall mean the
9 one hundred highest arraignment volumes in town and village courts in
10 the state as determined by the office of court administration in consul-
11 tation with the division of criminal justice services. The initial
12 determination shall be based on the sum of arraignments from two thou-
13 sand eighteen and two thousand nineteen. Subsequent determinations
14 shall take place every ten years thereafter and shall use the sum of at
15 least two years' data. Any change in the requirements for eligibility to
16 serve as a town or village justice in such town or village shall take
17 effect upon commencement of the next judicial term of office following
18 the designation as a town or village with a high arraignment volume.
19 Notwithstanding the foregoing, non-attorney justices in office as of the
20 effective date of this subdivision shall remain eligible to serve as a
21 justice for the court on which they currently sit. Further if a town or
22 village no longer qualifies as a town or village with a high arraignment

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 volume such town or village shall no longer have to comply with the
2 provisions of this subdivision.

3 § 2. Section 31 of the town law is amended by adding a new subdivision
4 2-a to read as follows:

5 2-a. Notwithstanding any other provision of law to the contrary, no
6 person may serve as a town justice in a town with a high arraignment
7 volume, as determined pursuant to subdivision (a-1) of section one
8 hundred five of the uniform justice court act, unless they are an attor-
9 ney admitted to practice law in this state for at least five years as of
10 the date they commence the duties of office. Any change in the require-
11 ments for eligibility to serve as a town justice in such town shall take
12 effect upon commencement of the next judicial term of office following
13 the designation as a town with a high arraignment volume. Notwithstand-
14 ing the foregoing, non-attorney justices in office as of the effective
15 date of this subdivision shall remain eligible to serve as a justice for
16 the court on which they currently sit. Further if a town no longer
17 qualifies as a town with a high arraignment volume as determined pursu-
18 ant to subdivision (a-1) of section one hundred five of the uniform
19 justice court act such town shall no longer have to comply with the
20 provisions of this subdivision.

21 § 3. Section 3-301 of the village law is amended by adding a new
22 subdivision 6 to read as follows:

23 6. Notwithstanding any other provision of law to the contrary, no
24 person may serve as a village justice in a village with a high arraign-
25 ment volume, as determined pursuant to subdivision (a-1) of section one
26 hundred five of the uniform justice court act, unless they are an attor-
27 ney admitted to practice law in this state for at least five years as of
28 the date they commence the duties of office. Any change in the require-
29 ments for eligibility to serve as a village justice in such village
30 shall take effect upon commencement of the next judicial term of office
31 following the designation as a village with a high arraignment volume.
32 Notwithstanding the foregoing, non-attorney justices in office as of the
33 effective date of this subdivision shall remain eligible to serve as a
34 justice for the court on which they currently sit. Further if a village
35 no longer qualifies as a village with a high arraignment volume as
36 determined pursuant to subdivision (a-1) of section one hundred five of
37 the uniform justice court act such village shall no longer have to
38 comply with the provisions of this subdivision.

39 § 4. This act shall take effect on the first of January next succeed-
40 ing the date on which it shall have become a law.